

21TRCV00830 21TRCV00830

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-07

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Case Number: 21TRCV00830 Hearing Date: July 7, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

EPPS

& COULSON, LLP,

Plaintiff,

Case No.:

21TRCV00830

vs.

[Tentative]

RULING

DEMPSEY

BISHOP, LLC,

Defendant.

Hearing

Date: July

7, 2026

Moving

Parties: Plaintiff and judgment creditor Epps & Coulson, LLP

Responding

Party: None

Motion

for Release and Turnover of Funds

The Court considered the moving papers. No opposition was filed.

RULING

The motion is GRANTED.

BACKGROUND

On November 9, 2021, plaintiff Epps & Coulson, LLP filed a complaint against Michael Martin, Dempsey Bishop LLC, and Roxe LLC for breach of contract and common counts.

Plaintiff alleges that on August 31, 2018, plaintiff agreed to represent defendants in matters regarding real estate, transactions, disputes and litigation. Plaintiff provided legal services to defendants in connection therewith.

On January 21, 2021, defendants failed and refused to pay plaintiff for legal services rendered and cost incurred pursuant to the contract in the amount of \$453,015.76 plus prejudgment interest.

On January 27, 2022, defaults were entered against defendants.

On September 26, 2022, a default judgment was entered against defendants.

On September 30, 2022, a writ of execution issued.

On August 8, 2024, a writ of execution issued.

LEGAL AUTHORITY

CCP §708.205,

“(a) Except as provided in subdivision (b), at the conclusion of a proceeding pursuant to this article, the court may order the judgment debtor's interest in the property in the possession or under the control of the judgment debtor or the third person or a debt owed by the third person to the judgment debtor to be applied toward the satisfaction of the money judgment if the property is not exempt from enforcement of a money judgment. Such an order creates a lien on the property or debt.

(b) If

a third person examined pursuant to Section 708.120 claims an interest in the property adverse to the judgment debtor or denies the debt and the court does not determine the matter as provided in subdivision (a) of Section 708.180, the court may not order the property or debt to be applied toward the satisfaction of the money judgment but may make an order pursuant to subdivision (c) or (d) of Section 708.180 forbidding transfer or payment to the extent authorized by that section.”

DISCUSSION

Plaintiff and judgment creditor Epps & Coulson, LLP requests an order releasing and turning over the funds currently held by the creditor in its trust account over which it has a lien in the amount of \$37,802.14, in partial satisfaction of the money judgment entered in this action on September 26, 2022.

As judgment creditor explains, the judgment entered against defendants on September 26, 2022 is in varying amounts depending on the judgement debtor. On September 30, 2022, the judgment creditor filed a notice of judgment lien with the California Secretary of State against judgment debtors. Judgment creditor states that it is informed that judgment debtors Roxe and Bishop are defunct entities that were owned and controlled by Martin, and

that Martin is the agent for Roxe. In April 2026, the judgment creditor applied for a debtor's examination of Martin, individually and as the agent for Roxe, for which the Court ordered Martin to appear for a debtor's exam, currently set for July 7, 2026. Judgment creditor asserts that it personally served Martin with the ORAP on April 24, 2026, thereby creating an ORAP lien on the personal property of Martin. See CCP §708.110(d).

Judgment creditor further explains that on June 9, 2021, prior to the entry of the herein judgment, judgment creditor and Martin's brother's (Duane's) former spouse, Tisha Campbell Martin, through her attorneys of record, entered into a stipulation concerning the distribution of sale proceeds of a home that was the subject of a bankruptcy (of third parties Duane Daniel Martin and Tisha Michelle Martin). Pursuant to the stipulation and as approved by the Bankruptcy Court, a portion of those sale proceeds in the amount of \$37,802.14, to which Tisha Campbell, Michael Martin, and Roxe asserted competing demands, would be held in plaintiff's trust account until such time that Campbell, Roxe, and Michael agree in writing to the disbursement of such funds, or an order is entered by a court of competent jurisdiction directing how such funds should be disbursed by plaintiff. Judgment creditor argues that Roxe is a defunct corporation, has not and cannot make claims to the funds; Michael Martin has not made claims to the funds and he owes judgment creditor the money judgment; and Tisha Campbell has not contacted judgment creditor and has not made any claim to the funds and the time within which she might have done so has long passed. See Request for Judicial Notice, Exhs. 2-5.

Judgment creditor further argues that it is entitled to the funds because it has a lien on the funds and good cause exists for the Court to order release of the funds in partial satisfaction of the judgment herein.

There is no opposition.

The Court finds a release of the funds warranted pursuant to CCP §708.205.

The motion is GRANTED.

ORDER

The motion is GRANTED.

Moving party is to give notice of ruling.

*The Court notes that, in the motion, moving party alternately states the amount as \$32,807.14 and \$37,802.14. The \$37,802.14 figure matches the figure in the stipulation filed in Bankruptcy Court, so the Court has used that amount. At the hearing, counsel should inform the Court if that is incorrect.